ANTI-CORRUPTION COMMISSION

COMMISSION MEETING FORM

MEETING NO.	105th Commission Meeting
DATE:	23 November 2022
TIME:	02:00 PM
VENUE:	Third Floor Meeting Room

#	AGENDA & DISCUSSION	DECISIONS
1.	**Regular update on HR- HRS** The Asst. HRO updated the Commission on the past Commission decision related to Human Resource and the decisions of the 78th HRC meeting as follows: ● *Selection committee decided to have a second round of written examination for standby candidates on 24 November. Therefore, the interview is rescheduled from 28 November – 01 December 2022.* ● *Heads/Supervisors to continue mentoring and coaching of probationers and more so look at the welfare of the subordinates.* ● *For the Leadership Development Program, three additional P2 officers are selected.* ● *For approval of travel, HRC members discussed the need to have a plan of actions.* *Service regularization of seven probationers based on the two assessments conducted with the average score of above 3 as against the requirement to score 3 out of 4.*	**Considering that most of the travels have to be undertaken on ad-hoc basis and in view of the sensitivity of certain travels added to the administrative burden on the HRC, the Commission directed HRC to rationalize the need to discuss the action plan for the purpose of approving travel. To this end, as long as it is approved by the respective Commissioner In-Charges and Heads of Departments/Divisions, the Commission deems it justified.** **The Commission also directed to keep informed and updated on the deliberations of the Parliament sessions especially regarding the Pay Structure Reform Bill so as to understand the intention of such reforms and to gauge the implication it will have on the**

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		existing retention and attraction realities of the institution and the impact it will have going forward. **While there are many professionals in the ACC with the legal background, none of them have either passed the bar examination or never attempted it. Thus, directed HRS to see what is required for the bar exam and explore possibilities on how the agency can facilitate the individual in doing the exam. This is mainly to ensure professional development which will be significant for the credibility of the staff and the institution.**
2.	**Regular update on IVS- DoPS** *Based on the decision of the 104th Commission meeting, DoPS and LD have worked on the template for the Integrity Vetting Report (IVR) which was presented to the Commission for direction. (The template is attached as Annex I)*	**Towards ensuring that the information in the IVR is technically comprehensive, the Commission directed to include cautionary notice in the '*No'* (Green) certificate highlighting that the Green certificate is issued based on the understanding between the ACC and the ECB, however it doesn't necessarily absolve the individual from other records such as, ongoing investigation, complaints, qualified for investigation etc.** **Other specific comments are:** **● Revise Chairperson to 'Chairperson of Anti-Corruption Commission';** **● The date to be auto-generated and to read as 'as of date followed by the system-generated date';** **● Include 'No Record' or 'Yes Record' in the bracket adjoining to 'This Report……': and** **● The validity of the report and procedures to be clearly set out in the Memorandum of Understanding.**
3.	**Apprise on AD non-compliance and issues related to payment getaway- ADMD** *The Commission during the 103rd Commission meeting directed ADMD to henceforth deposit the penalty imposed to the late-declarants and non-declarants into the Government Account (ACC Escrow Account) and accordingly effect changes in the Asset Declaration Rules 2017 during the amendment.* *Accordingly, the Division explored the processes necessary for depositing the*	**To this, the Commission directed to go with the third recommendation of the Division. However, informed that the intention of the initiative is to account for the fines collected on such administrative lapses.**

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	penalties into the Escrow account to which following issues were observed: *1. Given that the Section 64, 23 (j) and 24 (m) of the AD Rules need to be amended for the penalties to be deposited into the ACC Escrow Account, LD recommended to continue with the current practice unless the AD Rules is amended. This is in view that the Section 64 of the rules requires that the fine levied shall be collected through issuance of receipt.* *2. The other option for depositing fines into the ACC escrow account is integration into the RMA payment gateway. However, this would entail delinking from the G2C services. Unlike G2C services where acknowledgment receipt is auto-generated after the payment of fines, RMA gateway doesn't issue acknowledgement receipt. The ADR 2017 in its Section 64 requires that the fines levied shall be collected through the issuance of receipt. In addition, integration into the RMA gateway would also entail application fee and security charge for Open Web Application Security Project (OAWSP).* *Therefore, Division* recommended *the following:* *1. Do away with online payment gateway (PG) and directly deposit in the escrow account number; or* *2. Retain in G2C as it is; or* *3. For this Income year 2021, keep as it is and initiate integration through RMA PG after the completion of this income year (after the revision of ADR 2017)* *The Division also presented the appeal received from non-declarants for Commission*'s *direction (detail as attached in Annex II)*	**The decisions against non-declarants are attached. Additionally. the Commission directed the following:** ● **Given that there is ambiguity in the ADR 2017 on whether to levy a fine or not for those covered persons who are on half-pay study leave, Division to bring clarity in the Rules during the amendment.** ● **The Division to send a final reminder to the non-declarants and late-declarants regarding the payment of the fines with a caution that the Commission will forward for necessary legal actions and record in the Integrity Vetting System should they fail to do as required.**

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4.	**Apprise on follow up on ATR as part of OIP- PD & CFD, DoPS** *Commission directed that for systemic intervention after investigation, PD to follow up. The first practice is for Case 16.2020. However, the division noted that upon review and follow up on the three recommendations, it does not fall under the OIP.*	**The Commission noted that since PD was not involved in the case, they are not aware of the background. However, as for the three recommendations, directed to put as additional activities under OIP and assess as part of it.** **Secondly, the Commission to revisit the justification submitted by the agency and close it if found reasonable.** **In meantime, if PD finds any other systemic recommendations, then put it as additional activity under OIP.**
5.	**Reappraisal on the guideline for suspension on business license- LD** *Based on the direction of the 103rd Commission meeting, LD presented the revised draft to the Commission (attached as Annex III).*	**Towards this the direction of the Commission has been noted in the Annexure III.** **However, directed to further elaborate on the responsibility/accountability of the legal person, besides the natural person.** **Secondly, directed LD to think on incorporating integrity vetting in the guideline.** **After revision, directed to share the revised draft to the Commission.**
6.	**Apprise on upcoming international events- PPD** *PPD apprised that the 12th General Meeting of the International Association of Anti-Corruption Authorities is scheduled on 8 December 2022 (agenda attached as Annex IV). Towards this, sought direction on who will attend the meeting.*	**Decided that Commissioner A Karma Rinzin, officials from PPD and HRO to attend the virtual meeting on 8 December 2022.**
7.	**Present implementation status of 102nd to 104th Commission Meeting and overall status- PPD**	**Deferred**
8.	Others: ***i) Verbal abuse to ACC staff*** *On 25 November 2022, one of the accused in a case made a verbal threat through a call to one of the staff of the ACC. While the incident was trivial, nonetheless in need to send a strong signal to people that such abuse to ACC staff will not be tolerated, DoI reported the incidence to Commission.*	**Directed Major to first contact the individual and make an assessment before making formal complaints to RBP. However, it will be recorded for future reference and directed Major to ensure that the IOs are not exposed.** **The Commission noted that while it is unfortunate that staff while in line of duty have to face such abuses, it will not be tolerated and the Commission will make sure to bring such people to task and create necessary deterrence.**

Commissioner **Commissioner** **Chairperson**

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Annex I

ANTI-CORRUPTION COMMISSION

Sample of IVR (Election Purpose)

Department of Professional Support

Application no. **Date:**

INTEGRITY VETTING REPORT

The Anti-Corruption Commission is pleased to inform that there is no adverse record against **Mr/Mrs……. CID No. ……...** with the Commission as of **today/date**.

This report is issued as Integrity Assessment Certificate (IAC) to the Election Commission of Bhutan for the National Council Election 2023 , in accordance with Section 24(1)(a) and (j) and Section 25(1)(h) of the Anti-Corruption Act of Bhutan 2011.

This report is generated based on the information maintained with the ACC and should be treated confidential and shall be used for the intended purpose only.

The Chairperson

INTEGRITY VETTING REPORT
(Adverse Record)

The Anti-Corruption Commission (ACC) regrets to inform that as per the record of ACC, **Mr/Mrs……. CID No. ……..** has been implicated in the case……..and:

- □ Convicted for criminal offences and sentenced to imprisonment;
- □ Is under trial for offences of felony and above;
- □ Imposed or there is pending major administrative action (termination, dismissal or removal from service);
- □ Imposed alternative sentences in lieu of imprisonment such as civil commitment and/or commutation of sentences civil sanctions in the forms of fine or penalty;
- □ There is pending confiscation, restitution or recovery.

This report is issued as Integrity Assessment Certificate (IAC) to the Election Commission of Bhutan for the National Council Election 2023 , in accordance with Section 24(1)(a) and (j) and Section 25(1)(h) of the Anti-Corruption Act of Bhutan 2011.

This report is generated based on the information maintained with the ACC and should be treated confidential and shall be used for the intended purpose only.

The Chairperson

Annex II

Presentation to the Commission

23 November, 2022
ADMD

ANTI-CORRUPTION COMMISSION

Lhadro Lam, Kawajangsa
Thimphu, BHUTAN
Post Box No. 1113
Facsimile +975-2-33 48 65
Tel. No. +975-2-33 48 64/66/67
www.acc.org.bt:

Agenda

- Issues pertaining to depositing penalties in ACC's Escrow Account
- Action on non-declarants

Asset Declaration Rules 2017

Rule 64:

“The fines levied under this rule shall be collected through issuance of a receipt and accordingly deposited with the Government Revenue Account”

Rule 23 (j):

“Ensure that the fines levied against a late declarants are collected and deposited with the Government Revenue Account”

Rule 24 (m):

“Ensure that the fines levied against a covered person under this Rule are collected and deposited with the Government Revenue Account”

Integration with RMA's Payment gateway

Rule 64:

"The fines levied under this rule shall be collected through issuance of a receipt and accordingly deposited with the Government Revenue Account"

- For now, while in G2C, **revenue receipt** is directly generated by DRC
- If the penalties are deposited in an escrow account, how will revenue receipt be generated?
- How will failed transactions be handled?



Contd.

- RMA PG: Platform to process transaction (debit and credit)
- Unlike G2C PG, no acknowledgement receipt is issued by RMA
- Reconciliation: ACC has to do it
    - How to **reconcile**: ADS data, RMA's transaction data and account statement?

- In Case of failed transactions, (debited from one's account but not credited in ACC's escrow account) the banks will credit it back to ACC's account within 24 hours without having to inform Banks.
- RMA Application fee: 1000
- Security clearance for Open Web Application Security Project (OAWSP): Charge: 10,000

Discussion with DoPS

Management of Escrow Account:

- No receipt issued (handwritten acknowledgement upon request by individual)
- Maintain google sheet to record information on all transactions
- Deposit to DRC-Government Revenue account upon Commission endorsement
- If AD's penalties are deposited in Escrow account:
  - How will DoPS know of the deposit through online?
  - Recommendation: **internet banking**

Contd.

Acknowledgement Receipt:

- If online PG is used:

  On what basis should we give acknowledgement receipt? How will the system know the transaction was successful unless it is verified by DoPS?

  Cant issue SMS/Email acknowledgement uless DoPS verifies it first.

  However, system generated acknowledgement receipt can be generated in ADS upon payment of penalty.

Proposal by DoPS:

- Daily bank statement should be generated using internet banking to check the deposits

Proposal from ADMD

1. Do away with online PG and directly deposit in the escrow account number
2. Retain in G2C as it is
3. For this Income year 2021, keep as it is and initiate integration through RMA

   PG after the completion of this income year (after the revision of ADR 2017)

Action on Non-Declarants: Income Year 2021

Fourth Presentation to the Commission

ANTI-CORRUPTION COMMISSION

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Overall AD Compliance Statistics

Declarant Category	Total Covered Persons	Total Filed on Time	Total Late Declarant	Total Non Declarant	On Time Compliance rate
Schedule I	24568	24110	347	115	98.14%
Schedule II	700	661	37	2	94.43%
Overall	**25268**	**24771**	**384**	**117**	**98.03%**

Reason for Non-Declaration (Justifications Received)

SN	Non-Declaration Reason	Count
1	Appeal	1
2	Not a Covered Person/Resigned/Expired	24
3	Others	3
Total Non Declarants		**28**

1. Appeal

Name	CID	Working Agency	Justification	Commission Decision
Nima Wangmo	10502001530	BDBL	She went to pursue studies at Gedu from company scholarship starting 2021-2023. study leave with half pay. She was not aware of having to file AD during study period. Her salary after deduction is only Nu 6567. As a single mother, it is very hard for her manage household expenses.	

2. Not a covered Person

- 24 Non-Declarants reflected in the System were:
  - Not a covered person
  - Resigned
  - Deceased

3. Others

Name	CID	Working Agency	Justification	Recommendation of ADMD
Lham Dorji	12001002364	GNHC	Currently working under MoF as Project Officer for the GCF Preparatory and Readiness Support Programme in Bhutan. He joined GNHC in Jan 2021 for a contract term of 1 year. later it was extended till Nov 2022. he was not aware that one need to file AD on contract. He receives lump sum salary with tax deducted at source without any PF or GIS deductions, except the health contribution. *He has filed Assumption of office when he joined GNHC*	Impose
Dev Raj Dungana	11308000948	DHI	Added on 22/7/2022 in the covered person list	Waive off

contd.

Name	CID	Working Agency	Justification	Recommendation of ADMD
Pema Kara Wangchen	11410002936	ADA DHI	He asked them to file AoO in January but then the system was still under development. He sent email reminding all to file and also reminded in 22 June and in August. Couldn't log in to the system during the last two weeks of August. He could add the two individuals in the August but the system logged him out again twice. Also, he was out of Country in **26 June-30 August** attending his sickly wife who was undergoing treatment. While out of country, he tried to log in everyday and approve all declarations. Due to system remaining clogged, he could not file his own declaration on time for which he takes full responsibility and accountability. So far, he has always filed his declaration on time and took the ADA responsibility with utmost sincerity. The management has also moved him out of HR Department during his absence and the role of ADA has been handed over to other person.	

Commission Decision

SN	Issue	Commission Decision	Remarks
1	Integration with RMA's PG		
2	Action on Non-Declarants		

Thank you

Appraise Follow-up on ATR as OIP

Embezzlement of Public Funds by Accountant at ESD, BPC, Paro.

Date: 23 November, 2022

Prevention Division
DoPE

ANTI-CORRUPTION COMMISSION

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Background

- ✓ **Investigation Findings:** Ascertained systemic issues and loopholes. Commission issued further review and actions as follows;

1) *Part C (2)*: Justification for expenses incurred every financial year in electrical museum after completion of the project.
2) *Part C (3):* Legality of deposit work of Aum Lhaden Pema Dorji in line with rules and regulation.
3) *Part C (4):* Refund mechanism and status to clients pertaining to deposit works in line with account settlement.

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ANTI-CORRUPTION COMMISSION
'NATION'S CONSCIENCE'
"LEAD BY EXAMPLE"
"If you care, you will dare"

ACC/DoPS-FDD/FE/02/2021/

14th April 2022

System Recommendation Closure on Case 16/2020

The Chief Executive Officer
Bhutan Power Corporation Limited.
Thimphu

Subject: Systemic Recommendation Closure on Case No.16/2020.

Ref: ACC/DoPS-FDD/FE/02/2021/750 dated 03/12/2021.

Dear Sir,

The Commission would like to thank your Office for timely response and submitting action on recommendation part C (1) fixing accountability on relevant officials for lapses on deposit works pertaining to the above captioned case which was referred for further action under Section 139(1) of the Anti-Corruption Act of Bhutan 2011.

Upon review, your Office had suspended Mrs. Samten Wangmo, Mr. Ugyen Dorji and Mr. Sangay Wangchuk for various lapses on deposit works as a part of accountability and their service to depend on the outcome of prosecution on basis of our further referral, which the Commission is satisfied on the same. Thus, it is acknowledged and does not require the Commission further action under Section 139(2) of ACAB 2011.

action under Section 139(1) of the Anti-Corruption Act of Bhutan 2011.

Upon review, your Office had suspended Mrs. Samten Wangmo, Mr. Ugyen Dorji and Mr. Sangay Wangchuk for various lapses on deposit works as a part of accountability and their service to depend on the outcome of prosecution on basis of our further referral, which the Commission is satisfied on the same. Thus, it is acknowledged and does not require the Commission further action under Section 139(2) of ACAB 2011.

However, on recommendation Part C (2), the justification for expense incurred every financial year in electrical museum after completion of the project is not provided; Part C (3) legality of deposit work of Aum Lhaden Pema Dorji in line with rules and regulation is not furnished; and Part C (4) refund mechanism and status to clients pertaining to deposit works as a part of account settlement is not stated as pointed by the Commission. On these 3 unresolved recommendations, the follow up module shall be closed to avoid duplication of functions but BPC has to address them in line with the OIP process that shall be ensured and accounted for by the Prevention Division, DoPE, ACC for future redressal.

Therefore, the Commission hereby informs your Office that the unresolved systemic recommendation is to be packed with OIP and closed for the purpose of follow up based on above justifications.

Thanking You for the continued support.

Yours Sincerely,

(Deki Pema)
Chairperson

OIP Follow-Up by PD

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ACC/DoPE/PD-06/ 2086

11 October, 2022

The Chief Executive Officer
Bhutan Power Corporation Limited, BPCL
Thimphu: Bhutan

Subject: **Submission of Action Plan/OIP for Implementation Review**

Dear Dasho,

This is in reference to letter No. ACC/DoPS-FDD/FE/02/2021/1036 dated 14th April, 2022 regarding the submission of the Action Plan/Organizational Integrity Plan (OIP) on three unresolved recommendations based on the Investigation Findings of the Case No.16/2020. Please find attached OIP format for necessary action.

In this regard, kindly submit the action plan/OIP within

Dear Dasho,

This is in reference to letter No. ACC/DoPS-FDD/FE/02/2021/1036 dated 14th April, 2022 regarding the submission of the Action Plan/Organizational Integrity Plan (OIP) on three unresolved recommendations based on the Investigation Findings of the Case No.16/2020. Please find attached OIP format for necessary action.

In this regard, kindly submit the action plan/OIP within one month of receiving this letter. The Commission will monitor and evaluate the implementation of the OIP on a half yearly and annual basis.

Thanking you for the continued support and cooperation in our collective fight against corruption.

Yours Sincerely,

(Jamtsho)
Commissioner

Follow Up by PD through OIP

Action Plan/Activity for OIP submitted by BPCL

1) Part C (2): Provide justification for expense incurred every financial year in electrical museum after completion of the project.

Action Plan 1: The progress of the project was constantly monitored by the strategic planning committee constituted to completed the project.

Justification: The project as incepted was simple to protect and preserve the inaugural board by the Late Majesty the Third King of Bhutan. The initial plan had to be revised as it got included in the national celebration (40th Birth Anniversary of His Majesty the 5th King of Bhutan). The project is completed in all respect and is proposed to inaugurate in February 2023. Initially no separate supervisory functions were allocated. The project was mobilized on concept of dual function guided by the delegation of power.

Follow Up by PD through OIP

However, with the elevation of the project to national level celebration, the steering Committee constituted by (1) Dasho Chewang Rinzin, MD, DGPC; (2) Dasho Karma Y Radi, CEO, DHI; (3) Mr. Karma Penjor Dorji, Director, DHPS, MoEA; (4) Mr. Sonam Tobjey, CEO,BPC was formed to review, supervise and decide the construction plans and programs of the museum.

Cont.

Action Plan 2: The Internal Audit was engaged to verify the findings of the ACC and as per directives, the findings of Internal Audit BPC was reported to ACC as a part of ATR.

Justification: The accounting lapses and possible embezzlement case was pointed out the Internal Audit while carrying out annual auditing of the ESD, BPC, Paro. The case was then referred to Board Audit and Risk Committee of BPC for further decisions and directives. The board directed the BPC Management to refer case to over sight agencies and accordingly the case forwarded to ACC. The ACC while investigating the case, in addition to embezzlement case, the ACC also pointed out issues of deposit work money of Aum Lhaden Pema Dorji. ACC directed BPC to reverify the said case and the Internal Audit of BPC found out that Ms. Samten Wangmo had embezzled Nu. 150,000/- pertaining to deposit work.

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The report was submitted to ACC and also made presentation to ACC officials. BPC officials requested ACC and OAG to include recovery of Nu. 150,000/- to settle the case.

Cont.

Action Plan 3: Recently the BPC invited Royal Audit Authority (RAA) to audit the project and BPC us awaiting the final audit report.

Justification: BPC is still awaiting the final RAA reports and once the RAA audit report is finalized, the report will be shared with ACC as a part of ATR.

Cont.

2. Part C (3): Furnish the legality of deposit work of Aum Lhaden Pema Dorji in line with rules and regulations

Action Plan (1): The issues was discussed with the ACC follow up official and requested to forward the said case to be prosecuted by the OAG.

Justification: The ACC asked the BPC to find out whether Aum Lhaden could directly process the deposit works without following the BPC Deposit Work Guidelines for supply Extension and Shifting of Electrical Infrastructure 2016. As pointed out by ACC as well as Internal Audit, it was found that Aum Lhaden had requested Mr. Ugyen Dorji to directly process her deposit works without following the stipulated due process of BPC Deposit Work Guideline 2016. Since it was individually handled by Mr. Ugyen Dorji, BPC decided to fix direct accountability to Mr. Ugyen Dorji for settlement with Aum Lhaden.

Cont.

Action Plan (2): The BPC will strictly implement the deposit work guidelines and every work shall be subjected to scrutiny by monitoring by the SQD and timely auditing by the Internal Audit.

Action Plan (3): *The Board Tender and Technical Committee approved Turn-Around-Time (TAT) to complete the deposit work implementation. This shall be subjected to further compliance monitoring by the BPC compliance offices like SQD and Internal Audit.*

Cont.

3. Part C (4): Clearly state the refund mechanism and status to clients pertaining to deposit works as a part of account settlement.

Action Plan 1: The complete process od deposit works are spelled out in the deposit work guidelines. Hence, BPC will be strictly monitor the compliance of the guidelines and non-compliance shall be metted out with stringent administrative actions.

Justification: Concerning the issues of negligible amounts not refunded to individual customers pointed out by the Internal Audit, it was found out that despite follow up by the ESD, BPC, some of the customers are not interested to come and claim the petty amount. BPC shall make effort to call the customer failed to come despite BPC's reminder and as per Clause 10.5.4 (a) of BPC Accounting Manual and Management Rules and Regulations, unclaimed liabilities shall be credited to miscellaneous income of BPC.

Cont.

Action Plan 2: As submitted above, since Mr. Ugyen Dorji and Aum Lhaden Pema Dorji had not followed due process i.e. deposit work guidelines of BPC, the accountability is fixed to Mr. Ugyen Dorji to settle the issues with Aum Lhaden Pema. Once the issue is settled, BPC shall inform the ACC accordingly.

Action Plan 3: TAT approved by the Board shall be strictly implemented in the field offices to avoid such lapses in the filed offices. The officials who are responsible shall be held accountable with stringent administrative actions.

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Annex III

GUIDELINE ON SUSPENSION OF BUSINESS LICENSE

Introduction

Section 24(1) (g) of the Anti-Corruption Act of Bhutan 2011 (ACAB) empowers the Anti-Corruption Commission (ACC) to suspend a license or prohibit an individual or entity from participating in contractual relation with public agencies upon finding a prima facie case of corruption. Section 24(1)(g) of the ACAB provides broad mandates the ACC to either (i) suspend a license or (ii) prohibit an individual or entity to enter into contractual relationship with public agencies. It states as follow:

"(g) Upon finding of a prima facie case of corruption, suspend a license, or prohibit an individual or entity whether national or foreign from participating in contractual relations with public agencies till pending the outcome of the case;"

The said section accord discretion on the ACC to either consider suspending the license thereby prohibiting the licensee from carrying out any future business by an individual or entirety using the impugned license, or prohibit the licensee from entering into contractual relationship only with public agencies and allowing the use of impugned license for other private business. However, it does not specify the manner for this section to be invoked and enforced. Therefore, it is imperative to have detail guideline to ensure consistent application and enforcement of the said section; and to bring clarity in the suspension of business license.

Objectives

(1) The objectives of this Guideline are to set forth the conditions and manner to suspend a license or prohibit an individual or entity, whether national or foreign, from participating in a contractual relationship with public agencies.

Purpose of suspension

(2) A business license may be suspended or an individual or entity may be prohibited from entering into contractual relation with the public agencies to prevent and deter the commission of corruption in the public agencies.

Break down under following:

1. Deterrence
2. Prevention
3. Perpetuation/any other

Application

(3) This guideline shall apply for:

(a) Suspension of business license; and

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(b) Prohibition of individual or entity, whether national or foreign, from entering into contractual relationship with public agencies.

Suspension of business license

(4) Business license shall be suspended only if there is prima facie case of corruption in obtaining a business license thereby barring the holder of suspended business license to continue the operation of business permitted under the suspended license.

(5) Business license shall be suspended only if there is prima facie case of corruption in obtaining a business license, thereby barring the holder of suspended business license to continue the operation of business permitted under the suspended license. (Break the sentence)

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Prohibition from entering into contractual relationship with public agency

(6) An individual or entity found to have engaged in commission of corruption offense by using a lawfully obtained license shall be prohibited from entering into contractual relationship with public agencies till the pending of case to prevent the corruption from perpetuating in the public service.

Exceptions

(7) A business license may not be suspended or an individual or entity may not be prohibited from entering into contractual relationship with public agencies if the prohibition would have adverse impact on:

(a) national security and sovereignty;

(b) public health; or

(c) other public interest.

~~(a) National security and sovereignty;~~

~~(b) Friendly relation with foreign State or international or regional offices;~~

~~(c) Economic interest of the State or public agency; or~~

~~(d) Public health interest;~~

Notwithstanding the above, the Commission may refer a matter to the relevant authorities for actions as they may deem fit including but not limited to suspension and cancellation of a license when it is established that a license has been used in operating, promoting or pursuing the activities other than those permitted by a license or any conditions thereunder or operation of business is not consistent with the laws in vogue or such business may perpetuate illegal activities or impair public policy.

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Such referrals shall include pertinent facts, evidences and conclusion.

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Suspension and Prohibition Order

(8) Suspension of business license or prohibition from entering into contractual relationship with public agencies shall be effected by:

(a) Issuance of a Suspension Order or Prohibition Order;
(b) Published in two mainstream newspapers circulating in Bhutan; and
(c) Broadcast in the television.

(9) A copy of such order shall be served to the relevant person and public agencies for compliance and necessary actions.

(10) The suspension of business license shall be effected by issuance of Suspension Order provided under annexure I.

(11) Prohibition from entering into contractual relationship with public agency shall be effected by issuance of Prohibition Order provided under annexure II.

Effect on on-going work

(12) The suspension or prohibition order shall not affect any on-going contractual obligations established prior to the suspension or prohibition.

(13) The Commission may allow the licensee to clear their stocks within a month or within such time the Commission deem fit.

Revocation of Suspension and Prohibition Order

(14) The Commission may revoke or rescind the Suspension Order or Prohibition Order if it deem continuation of suspension or prohibition is unnecessary or to serve the national or public interest.

Amendment and variation

(15) This Guideline is intended to be working document and may be amended or varied by the Commission from time to time to fulfill the general objective of this Guideline.